

Writ – C No. 29656 of 2012

Panna Lal

vs.

State of U.P. and Others

Hon'ble Sheo Kumar Singh, J.**Hon'ble Ram Surat Ram (Maurya), J.**

1. Heard Sri Ajay Vikram Yadav for the petitioner and Standing Counsel and Sri Rajesh Tripathi for the respondents.
2. This writ petition has been filed for quashing the recovery citation dated . 2.3.2012 which has been issued for realization of Rs. 33,251/- from the petitioner and for a mandamus directing the Executive Engineer (respondent 4) to decide the application of the petitioner for permanent disconnection of the electricity connection and to accept the actual dues of the bills from him.
3. It is alleged that the petitioner took electricity connection for domestic purposes and was regularly paying the bills. On 29.4.2010, the petitioner moved an application for permanent disconnection of the electricity connection before respondent 4. He also deposited the requisite amount of Rs. 1,000/-, but respondent 4 has not done the needful, accordingly, the bills have been sent in the names of the petitioners although the petitioner has already applied for permanent disconnection and was not in need of the electricity connection.
4. The counsel for the petitioner submits that the petitioner is ready to pay the amount of bills, but due to his poor financial condition, he is not able to pay the entire outstanding dues by the due date. In case, if he is allowed to pay the outstanding dues in easy installments, he will be able to deposit the entire outstanding dues. The counsel for the respondents submits that the department is interested in realization of the dues. In case the petitioner is ready to pay the dues in installments, then the department will have no objection.

5. Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 makes a provision that Executive Engineer or any officer higher in rank to him, may extend the facility of installment to those customers who are in financial distress position. Since the petitioner is ready to pay the outstanding dues, accordingly, in view of the aforesaid provision, it is provided that the petitioner may pay the entire arrears of the bills in three equal installments, first installment of which shall be paid on or before 31.7.2012, the second installment be paid upto 30.9.2012 and the third and final installment be paid upto 30.11.2012. In case the petitioner pays the installments regularly in time, then 50% of collection charges will be waived. In case of default in payment of the amount of any installment, the respondent will be free to recover the entire amount from the petitioner.

6. In view of the aforesaid direction, the recovery proceeding is stayed upto 31.7.2012. In case the petitioner deposits the first installment, then the stay order shall continue upto the date of deposit of the second installment and on deposit of the second installment, it shall continue till the date of deposit of the third and final installment.

7. Since the petitioner has already applied for permanent disconnection of the electricity connection on 29.4.2010 and has also deposited the expenses for permanent disconnection, therefore, respondent 4 shall finalize the matter relating to permanent disconnection, preferably within a period of 15 days from the date of receipt of a certified copy of this order and complete all formalities in this respect.

8. With the aforesaid direction, the writ petition is **disposed of**.

Order dt: 07/06/2012

Jaideep/-